

**SUBSTITUTE FOR
HOUSE BILL NO. 5451**

A bill to amend 2000 PA 92, entitled
"Food law,"
by amending section 6135 (MCL 289.6135), as amended by 2012 PA 178,
and by adding section 6115a.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 6115a. (1) In addition to any other licensing requirement**
2 **under this act, a mobile food establishment is subject to both of**
3 **the following, as applicable:**

4 **(a) An annual inspection by a fire inspector.**

5 **(b) An inspection by a fire inspector after the mobile food**
6 **establishment undergoes any of the following:**

7 **(i) Significant modifications to the mobile food**
8 **establishment's fire protection system, ventilation system, or**



1 cooking equipment in the commercial kitchen.

2 (ii) Changes that impact the safety features of the mobile food
3 establishment that are subject to fire safety regulations.

4 (iii) Any construction, alteration, modification, remodeling, or
5 addition related to the fuel piping, electrical system, kitchen
6 appliances, or fire suppression system.

7 (iv) Repairs to the fuel piping or kitchen appliances that
8 require a leak test.

9 (2) Not later than 30 days after submitting an application for
10 a license under section 4103 or not later than 30 days after
11 modifications or changes described under subsection (1) (b) are
12 completed, a mobile food establishment shall notify a fire
13 inspector within the jurisdiction of the mobile food
14 establishment's commissary, or if a mobile food establishment is a
15 special transitory food unit, the mobile food establishment shall
16 notify a fire inspector within the jurisdiction of the local health
17 department or a fire inspector who conducts the evaluations
18 required under section 6137(2) (d) or, if there is no local health
19 department, a county health department.

20 (3) A fire inspector shall conduct an inspection not later
21 than 30 days after being notified under subsection (2) to determine
22 whether the mobile food establishment is in compliance with the
23 applicable standards of a qualified version of the International
24 Fire Code and the National Fire Code. The department shall develop
25 and make available a fire inspection report form that a fire
26 inspector shall use to conduct an inspection under this subsection.
27 The fire inspection report form must meet all of the following
28 requirements:

29 (a) Subject to subdivisions (b), (c), and (d), be



1 substantially similar to the form developed by the Michigan Fire
2 Inspectors Society entitled "Mobile Food Service Unit Inspection
3 Consortium Safety Inspection Form".

4 (b) Provide that flammable gas leak detection equipment must
5 be tested at least once every 12 months.

6 (c) If the mobile food establishment utilizes a flammable gas
7 system, provide that the piping and appliances of the flammable gas
8 system must be tested at least once per month.

9 (d) Provide that all electrical appliances, fixtures,
10 equipment, and wiring are in compliance with NFPA 70 of the
11 National Electrical Code.

12 (4) A fire inspector shall provide a copy of the fire
13 inspection report form described under subsection (3) to a mobile
14 food establishment and the local health department or department,
15 as applicable, not later than 10 days after an inspection is
16 completed under this section. A mobile food establishment shall
17 maintain a copy of the fire inspection report form described under
18 subsection (3) for 1 year and make the fire inspection report form
19 available to the local health department or the department on
20 request. A fire inspection report form described under subsection
21 (3) is valid for 1 year, and a mobile food establishment is not
22 required to undergo more than 1 fire inspection per year as
23 described under this section, except as otherwise required by law.

24 (5) A fire inspector may charge a fee of not more than \$200.00
25 for a fire inspection completed under this section.

26 (6) In addition to the required inspection under subsection
27 (1)(a), a fire inspector may conduct an additional inspection for
28 any of the following reasons:

29 (a) If the mobile food establishment does not meet 1 or more



1 of the applicable standards described under subsection (3).

2 (b) To ensure ongoing compliance.

3 (c) To address observed or reported safety concerns at a
4 mobile food establishment before the mobile food establishment
5 serves food.

6 (7) A fire inspector shall not charge a fee for an additional
7 inspection conducted under subsection (6) (b) or (c). A fire
8 inspector may charge a fee for an additional inspection conducted
9 under subsection (6) (a).

10 (8) As used in this section:

11 (a) "Fire inspector" means an individual who holds a
12 certificate as a fire inspector under the firefighters training
13 council act, 1966 PA 291, MCL 29.361 to 29.377.

14 (b) "Qualified version of the International Fire Code and the
15 National Fire Code" means that version of the International Fire
16 Code and the National Fire Code adopted on or before January 1,
17 2025, by the local unit of government in which the fire inspector
18 is employed or otherwise serves as a volunteer.

19 Sec. 6135. (1) The name and address of the business operating
20 a mobile food establishment ~~shall~~**must** be affixed to each side of
21 the exterior of the vehicle in letters not less than 3 inches high
22 and 3/8 of an inch wide and ~~shall~~**must** be in contrast to the
23 vehicle background color. When more than 1 mobile food ~~service~~
24 establishment is operated by the same person, the director shall
25 assign a number to each establishment.

26 (2) A copy of **both of the following must be carried on the**
27 **mobile food establishment at all times:**

28 (a) **The** limitations attached to the license. ~~of a mobile food~~
29 ~~service establishment shall be carried on the mobile food service~~



1 ~~establishment at all times.~~

2 **(b) A copy of the most recent fire inspection report form**
3 **provided under section 6115a.**

4 (3) If a mobile food establishment ~~is operating~~ **operates** on a
5 regularly scheduled route, the director may require the license
6 holder to provide a copy of the route schedule when the license is
7 approved and every time the route schedule is changed.

8 (4) The director or the operator in the presence of the
9 director shall affix 2 decals provided by the department on the
10 mobile food establishment at the time the license is issued. The
11 decals ~~shall~~ **must** be conspicuously displayed on each side of the
12 mobile food establishment so ~~as to be~~ **that the decals are** visible
13 when in transit and while serving the public.